

**BEFORE THE
FEDERAL MARITIME COMMISSION**

CertiFit, Inc.,

Complainant,

DOCKET NO. 23-03

v.

Evergreen Shipping Agency (America) Corp.,
as agent for Evergreen Line, Evergreen Group
d/b/a Evergreen Line,

Respondent.

**STIPULATION OF WITHDRAWAL AND SUBSTITUTION AS COUNSEL FOR
COMPLAINANT**

Pursuant to 46 C.F.R. § 502.23(d) of the Commission’s Rules of Practice and Procedure, outgoing counsel Barry G. Scholl and Sean B. Leonard of Richards Brandt Miller Nelson, for Complainant, CertiFit, Inc. ("Complainant") (“Outgoing Counsel”), and incoming counsel Barry G. Scholl and Sean B. Leonard of Christensen & Jensen, P.C., for Complainant (“Incoming Counsel”), stipulate to the withdrawal of Messrs. Scholl and Leonard (formerly with Richards Brandt Miller Nelson) and the substitution of Messrs. Scholl and Leonard (of Christensen & Jensen, P.C.), as follows:

BACKGROUND

1. Complainant is currently represented by Outgoing Counsel.
2. Incoming Counsel has served as counsel for Complainant while a client of the law firm Richards Brandt Miller Nelson.

3. The basis of withdrawal is the decision of Complainant to proceed with Incoming Counsel at their new firm, Christensen & Jensen, P.C. The consent form of legal counsel for Complainant is enclosed with this Stipulation.

4. Incoming Counsel is fully familiar with the lawsuit and its substitution will not require any delay of the proceedings, the key area of inquiry in 46 C.F.R. § 502.23(d).

DATED: September 14, 2023

Respectfully submitted,

CHRISTENSEN & JENSEN, P.C.

/s/ Sean B. Leonard
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Incoming Attorneys for Complainant

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Outgoing Attorneys for Complainant

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**CONSENT OF COMPLAINANT CERTIFIT, INC. TO WITHDRAWAL OF BARRY G.
SCHOLL AND SEAN B. LEONARD AS ITS COUNSEL**

Complainant, CertiFit, Inc., consents to the withdrawal of Barry G. Scholl and Sean B. Leonard of Richards Brandt Miller Nelson, and the substitution of Barry G. Scholl and Sean B. Leonard of Christensen & Jensen, P.C. as counsel for Complainant, CertiFit, Inc.

Executed: September 14, 2023

CERTIFIT, INC.

By: Vyron Dotlen Secretary/Treasurer